

The Orissa Grama Panchayats (Postponement of Election) Act, 1990

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State of Odisha - Act

The Orissa Grama Panchayats (Postponement of Election) Act, 1990

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The Orissa Grama Panchayats (Postponement of Election) Act, 1990

Act 7 of 1990

Published on 31 December 1992

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The Orissa Grama Panchayats (Postponement of Election) Act, 1990

Orissa Act

No. 7 of 1990

An Act to provide for the postponement of General Election of Grama Panchayats in the State and for matters connected therewith or incidental thereto.

Be it enacted by the Legislature of the State of Orissa in the Forty-first Year of the Republic of India, as follows :

1.

Short title and commencement.

(1)

This Act may be called the Orissa Grama Panchayats (Postponement of Election) Act, 1990.

(2)

It shall be deemed to have come into force on the 26th day of January, 1990.

2.

Definitions.

- In this Act, unless the context otherwise requires-

(a)

"Grama Panchayat" means a Grama Panchayat constituted under the Grama Panchayats Act;

(b)

"Grama Panchayats Act" means the Orissa Grama Panchayats Act, 1964 (Orissa Act 1 of 1965

);

(c)

Words and expressions used but not defined shall have the meanings as assigned to them respectively in the Grama Panchayats Act.

3.

Postponement of election and consequences.

(1)

Notwithstanding anything contained in the Grama Panchayats Act, or any notification or order issued thereunder :

(a)

the general election for reconstitution of Grama Panchayats of the State shall be held within the [31st December, 1992;]
[Substituted vide Orissa Act No. 27 of 1992.]

(b)

during the period beginning with the date of commencement of this Act and until the newly elected members of the Grama Panchayat and its Sarpanch assume office, the powers and functions of every Grama Panchayat and its Sarpanch shall be exercised and discharged by the Grama Panchayat Extension Officer having jurisdiction over the concerned Grama or by any other officer authorised by the State Government in that behalf.

(2)

The General Election as referred to in Clause (a) of Sub-section (1) of members (including Sarpanch) shall be held in accordance with the provisions of the Grama Panchayats Act and the rules made thereunder.

(3)

The Grama Panchayats so reconstituted shall, for the intents and purposes, be deemed to have been constituted under, and be governed by, the provisions of the Grama Panchayats Act and the rules made thereunder.

4.

Repeal and savings.

(1)

The Orissa Grama Panchayats (Postponement of Election) Ordinance 1 of 1990 is hereby repealed.

(2)

Notwithstanding such repeal, anything done or any action taken under the Ordinance so repealed shall be deemed to have been done or taken under the provisions of this Act.

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